



Supplemental Nutrition Assistance Program (SNAP) Household Composition

Policy 24.04

Effective: March 1, 2019

Introduction

All Tennessee Department of Human Services (TDHS) staff must determine household composition before approving Supplemental Nutrition Assistance Program (SNAP) benefits.

Scope

The purpose of this policy is to provide procedures and guidelines for staff to assist them in determining who should be included or excluded in the Supplemental Nutrition Assistance Program (SNAP) household.

Policy

A. Household Composition

1. Prior to establishing eligibility and the Supplemental Nutrition Assistance Program (SNAP) allotment, the living constellations and other factors of all individuals residing together must be explored to determine which of them will be considered household (HH) members.
2. A HH is composed of one of the following individuals or groups of individuals:
 - a. An individual living alone;
 - b. An individual living with others, but customarily purchasing food and preparing meals for home consumption separate and apart from others; or
 - c. A group of individuals who live together and customarily purchase food and prepare meals together for home consumption.

B. Verification of Household Composition

Verify the HH size (number of persons in the HH), when questionable. This is done by either a collateral contact or another source of verification that will provide accurate information regarding the number of persons in the HH.

C. Purchasing and Preparing Meals

1. To determine which individuals included in the living constellation will be considered to be HH members, the case will be evaluated to determine how meals are purchased and prepared.
2. Unless specific individuals are eligible for separate HH status, all persons who purchase and prepare their meals in common are treated as one HH.
3. When an individual(s) changes a pattern of living to establish a new pattern, either by choice or by force of circumstances, the intent to establish the new pattern has greater importance than the prior pattern.
4. An individual(s) may intend to function as a separate HH, but cannot do so unless the SNAP application is approved. Consider the individual(s) as a separate HH when such intent is expressed.
5. For unregulated or special HH circumstances refer to [Policy 24.06 SNAP Special Living Arrangements](#)

D. Separate Household Status

1. Individuals who live together but purchase and prepare their meals separately may be eligible for separate HH status.
2. Persons eligible for separate HH status:
 - a. Siblings (not under parental control) who live together and who purchase and prepare separately;
 - b. Children twenty-two (22) and over who live with their parents and purchase and prepare separately;
 - c. Individuals other than parents and siblings who share living quarters with a SNAP HH, but who do not purchase and prepare meals with that HH;
 - d. A person who is disabled and unable to purchase their own food but who has arranged to have their food purchased and prepared separately from those with whom they live. Even if the person who shops for food or prepares meals for the disabled person lives with the disabled person, the disabled person may claim separate HH status; or
 - e. An elderly and disabled individual (and spouse of that individual) living with others when:
 - i. the elderly and disabled individual is unable to purchase and prepare his/her own meals with others; and
 - ii. the combined gross income of the others with whom the elderly and disabled individual lives (not including the individual and spouse) does not exceed 165% of the poverty level
 - iii. separate HH status can be granted to both the elderly and disabled individual (and spouse) or the other individual(s) with whom the elderly and disabled individual lives, if both of the criteria above are met.

- iv. staff shall refer to [Applying the 165% Gross Income Test](#) for the procedures on determining separate HH status for elderly and disabled individuals living with others.
- 3. Persons not eligible for separate HH status:
 - a. A spouse of a member of the HH;
 - b. Staff shall refer to [SNAP-Impact of the Defense of Marriage Act on SNAP Eligibility](#) that mandates that same-sex spouses must be considered to be married and a part of the same HH or SNAP eligibility purposes.
 - c. Children under twenty-two (22) who are living with their parents; or
 - d. when a child resides in more than one HH, staff shall refer to [Child Residing in More Than One Household During the Same Month](#).
 - e. Children under eighteen (18) who are living with someone acting as a parent (parental control).
- 4. Verification must be obtained for individuals wanting separate HH status. The individual must:
 - a. obtain the cooperation of the individual(s) with whom she/he lives in providing the necessary information; and
 - b. provide (if requested) a physician's statement that the elderly person is disabled as defined in [Policy 24.18 SNAP Deductions from Income](#), and cannot purchase and prepare their own food.

E. Designating Head of Household

- 1. Every HH must designate an individual as the head of HH for case control and issuance purposes.
- 2. Certain HHs must be offered the option of selecting their head of HH. The department shall allow the HH to select an adult parent of children (of any age) living in the HH, or an adult who has parental control over children [under eighteen (18) years of age] living in the HH, as the head of HH provided that all adult HH members agree to the selection.
- 3. If all adult members do not agree to the selection or decline to select, the department may designate the head of HH or permit the HH to make another selection.
- 4. For HHs that do not consist of adult parents and children, the department shall designate the head of HH or permit the HH to do so.
- 5. When the HH declines to designate or cannot agree who is to be the head of the HH, the department will designate the head of the HH.
- 6. The department shall permit HHs to select their head at each certification action or whenever there is a change in HH composition.
- 7. The head of HH classification will not be used to impose special requirements, such as requiring the head of HH, rather than another responsible member of the HH, to file the application or to appear at the certification interview.

Supporting Documents

[Applying the 165% Gross Income Test](#)

[Policy 24.06 SNAP Special Living Arrangements](#)

[SNAP-Impact of the Defense of Marriage Act on SNAP Eligibility](#)

[Child Residing in More Than One Household During the Same Month](#)

[Policy 24.18 SNAP Deductions from Income](#)

Definitions/Acronyms

Term	Definition
Department	The Tennessee Department of Human Services
Head of Household	The head of household is the person who has been designated to appear on the SNAP application by the household or the State Department.
HH	Household
Household	A household is a social unit comprised of varying numbers of individuals who live together in the same dwelling who customarily purchase and prepare food together for home consumption.
Living Constellation	A group of individuals that live together.
Parent-Child Relationship	Kinship connections between mothers and/or fathers and their children resulting from the child(ren's) birth or adoption or from the marriage of the child(ren's) mother or father.
Parental Control	The authority exercised by a mother or father (or any adult household member acting as a parent) to guide, manage, supervise, and provide care to a minor dependent child who lives in the same home.
Pattern of Living	A particular way in which a HH is comprised or organized.
Sibling	An individual who shares a common parent with another individual. Sibling relationship may be either natural, legal, or by marriage (i.e. natural, adopted, half, or step brothers and sisters).
SNAP	Supplemental Nutrition Assistance Program
Spouse	Two people who are legally married. For couples in a same-sex marriage, spouses must be included in one SNAP household. Tennessee does not recognize common law marriage. Common law marriage is not the same as a couple "living together." In a common law marriage, the couple presents themselves to the community, friends, and neighbors as a married couple.

Supersedes

SNAP Policy Manual, July 2017, Chapter 2

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Authority

7 CFR §273.1

Tenn. Comp. R. & Regs. 1240-01-02-.02

Application

All TDHS Staff and Contractors

Revision History

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